

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 2013(F)

WEBTRANS LOGISTICS, INC.,

Complainant,

v.

HAPAG-LLOYD (AMERICA) LLC,

Respondent.

**RESPONDENT HAPAG-LLOYD (AMERICA) LLC'S
SPECIAL APPEARANCE RESPONSE & ANSWER TO COMPLAINT**

Respondent Hapag-Lloyd (America) LLC (“Hapag-Lloyd America” or “Respondent”), by and through undersigned Counsel, hereby specially appears and answers the Complaint of Claimant Webtrans Logistics, Inc. (“Claimant” or “Webtrans”). Hapag-Lloyd America reiterates that it does not consent to the jurisdiction of the Federal Maritime Commission (“FMC”), and is only filing this Answer as required in the August 8, 2024 Notice of Reassignment to Administrative Law Judge.

PRELIMINARY STATEMENT

As should be dispositive to this matter, the FMC lacks jurisdiction to hear this case for two reasons: (1) Hapag-Lloyd America does not operate as a regulated entity as required by 46 U.S.C. § 41102(c) (*see Hapag-Lloyd A.G. & Hapag-Lloyd (Am.) LLC Possible Violations of 46 U.S.C. §41102(c)*, 4 F.M.C. 2d 53, 74, 2022 WL 3093193, at *20 (F.M.C. April 22, 2022)); and (2) the transportation at issue was solely between ports in two foreign countries, and thus does not satisfy the plain language of 46 U.S.C. § 41102. *See* Motion to Dismiss, *attached hereto as Exhibit 1*.

Accordingly, the Commission should dismiss the Complaint on jurisdictional grounds. In an abundance of caution, Hapag-Lloyd America provides the following Answer, if necessary.

Further, Hapag-Lloyd America states that the dispute raised by Claimant arose because Claimant failed to correctly categorize their cargo and failed to timely complete the required Material Science Data Sheet. Therefore, Claimant caused, contributed to, and/or knowingly and willfully assumed to risk of, delays and charges.

ANSWER TO MATTERS SET FORTH IN COMPLAINT

1. Hapag-Lloyd America lacks sufficient information to admit or deny the information in Paragraph 1, which begins with “The claimant, Webtrans Logistics, Inc.”
2. Denied, as stated in Paragraph 2, which begins with “The response named above, Hapag-Lloyd (America) LLC”
 - A. Hapag-Lloyd America lacks sufficient information to admit or deny the information in Paragraph 2A, which begins with “On July 12th, 2021”
 - B. Hapag-Lloyd America lacks sufficient information to admit or deny the information in Paragraph 2B, which begins with “All containers were delivered”
 - C. Admitted, as stated in Paragraph 2C, which begins with “On August 3rd, 2021”
 - D. Denied, as stated in Paragraph 2D, which begins with “There was no other”
 - E. Admitted that the intended vessel sailed on August 5, 2021. Hapag-Lloyd denies the remaining allegations in Paragraph 2E, which begins with “The intended vessel”
 - F. Admitted that Hapag-Lloyd America customer service spoke with a representative or employee of Webtrans on August 23, 2021 regarding the shipment, as alleged in

Paragraph 2F, which begins with “We only found out” Denied to the extent that this paragraph suggests that Webtrans had received no message from Hapag-Lloyd America regarding the shipment until this date.

G. Admitted, as stated in Paragraph 2G, which begins with “Hapag billed us”

H. Denied, as stated in Paragraph 2H, which begins with “Hapag never notified us”

3. Denied as stated in Paragraph 3, which begins with “We, the claimant, sent numerous emails”
4. Denied to the extent that this paragraph suggests that Hapag-Lloyd America failed to timely notify Webtrans of the status of their shipment. Hapag-Lloyd America lacks sufficient information to admit or deny the remaining information in Paragraph 4, which begins with “Had we been informed in a timely manner”
5. Admitted, that that Paragraph 5, which begins with “Under 46 USC Ch. 411” is a correct recital of 46 USC Ch. 411, denied to the extent that this Paragraph suggests that Hapag-Lloyd America is liable in this case.
6. Admitted, as alleged in Paragraph 6, which begins with “46 USC Ch. 411”
7. Denied, as alleged in Paragraph 7, which begins with “By failing to provide”
8. Hapag-Lloyd America denies that Webtrans is entitled to the remedy they seek in this case, as alleged in Paragraph 8 which begins with “We are requesting for Hapag”
9. Admitted, as alleged in Paragraph 9, which begins with “Hapag Invoice number”
10. Denied, as alleged in Paragraph 10, which begins with “The undersigned authorizes”

This court lacks jurisdiction over the claims in this case under 46 U.S.C. §41102. *See Exhibit 1.*

DEFENSES

1. This court lacks jurisdiction over the claims in this case under 46 U.S.C. §41102.
See Exhibit 1.
2. The Complaint fails to state a claim upon which relief may be granted in that the conduct which is subject to the Complaint was not performed by Hapag-Lloyd America.
3. The Complaint fails to state a claim upon which relief may be granted.
4. The Complaint fails to join necessary parties, i.e., the relevant consignees and freight forwarder.
5. The Commission lacks personal jurisdiction over Hapag-Lloyd America.
6. Claimant failed to mitigate its damages.
7. Claimant caused, contributed to, and/or knowingly and willfully assumed to risk of, delays and charges by engaging necessary parties that provided non genuine bills of lading.

PRAYER FOR RELIEF

WHEREFORE, Respondent respectfully requests that the Complaint be dismissed with prejudice.

Respectfully submitted this 19th day of August, 2024.

/s/ Jake Evans

Jake Evans

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Philip J. George

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CERTIFICATE OF SERVICE

I hereby certify that on this 19th day of August, 2024, the forgoing Special Appearance Response and Answer was served via electronic mail on:

Chief Administrative Law Judge
Federal Maritime Commission
Email: judges@fmc.gov

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/s/ Jake Evans

Jake Evans